

Note: missing signed Duties form (DE-147). The origin of the document filed May 26 is unknown to the court, but it is not mandatory Judicial Council form DE-147. The clerk cannot issue letters until the required Duties form is filed. C.R.C. 7.150.

11. S-PR-0014040 In Re the Davis Family Trust Survivor Trust

Appearance is required for hearing on petition to appoint successor trustee.
Missing waiver(s) of bond referred to in the petition.

12. S-PR-0014041 In Re the Donna Beth Foley 2014 Rev Trust

Petition to determine trust property is recommended for approval as prayed.
Note: trust proceedings to determine trust property were previously filed as action no. S-PR-0011407. It is unclear why petitioner filed this matter as a separate action.

13. S-PR-0014042 In Re the Hardy Fam Trust

Petition to determine trust property is recommended for approval in part, as follows:

The petition prays for a determination that the entirety of the Flick Street property be determined to be a trust asset. See Prayer, ¶ 1.

The petition should be granted as to the 1/100 share of the subject real property with current record title in the name of settlor Susan Hardy. The petition adequately establishes a factual and legal basis for relief under Prob.C. § 850 and *Heggstad*.

The petition should be denied as to the 99/100 share of the subject real property with current record title in the name of petitioner. The petition offers no factual or legal basis to determine that petitioner's 99/100 share is a trust asset. To the contrary, the petition establishes that record title to the 99/100 share was funded to the trust during settlor's lifetime and was distributed from the trust to petitioner in 2020. There is no basis to determine this share of the property is a trust asset.

14. S-PR-0014043 In Re the Estate of Kirchhoff, Susan Lee

Petition to administer estate is recommended for approval as prayed.